

Kanpur Electricity Supply Co. v. U.P. Electricity Regulatory Commission

Allahabad High Court · Single Judge · 24 January 2012 · Writ-C No. 4260 of 2012 · **Writ petition dismissed.**

HEADNOTE

KESCO's writ against an Electricity Ombudsman order levying a Supply Code 7.1 fine of Rs 50 per day on the Executive Engineer for a three-year delay in replacing a meter after the consumer deposited the change-of-meter fee was dismissed. Findings of fact on deposit and delayed replacement, and the Commission's consequential action under the Code, were left undisturbed.

FACTUAL SUMMARY

The consumer deposited the fee for change of the electricity supply meter on 4 March 2008. Kanpur Electricity Supply Company did not replace the meter until 22 March 2011, a delay of nearly three years. By order dated 4 January 2012 the Electricity Ombudsman recorded those facts and, under Electricity Supply Code clause 7.1, levied a fine of Rs 50 per day on the Executive Engineer. The company challenged that order and the U.P. Electricity Regulatory Commission's consequential action in this writ petition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.1

meter-replacement-delay-penalty

HOLDING

Findings of fact that the change-of-meter fee was deposited on 4 March 2008 and the meter replaced only on 22 March 2011 after nearly three years admit of no interference; consequential action under Electricity Supply Code 7.1, including the Rs 50 per day fine on the Executive Engineer for that delay, does not warrant interference. ¶ 1